

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 02/24/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L25-04836
CASE NAME: BANK OF AMERICA, N.A. VS. CLARK BAUTISTA
*HEARING ON MOTION IN RE: FOR ORDER SETTING ASIDE AND VACATING ITS PRIOR ORDER OF DISMISSAL AND FOR ENTRY OF JUDGMENT PURSUANT TO STIPULATION
FILED BY: BANK OF AMERICA, N.A.

TENTATIVE RULING:

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint. Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$5,476.75, plus additional litigation costs, less any credits for payments received.

The Defendant made payments of \$450.

A schedule of costs associated with this litigation was included in the papers submitted by Plaintiff.

The Stipulated Agreement was filed 9/9/25.

A dismissal was entered on 10/23/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$5,584.27. Plaintiff shall prepare the order and judgment.

2. 9:00 AM CASE NUMBER: L25-06756

CASE NAME: CAPITAL ONE, N.A. VS. JOSEPH ODOHERTY

***HEARING ON MOTION IN RE: TO SET ASIDE JUDGMENT AND DISMISS ACTION WITHOUT PREJUDICE**

FILED BY: CAPITAL ONE, N.A.

***TENTATIVE RULING**

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background and Analysis

Plaintiff moves to dismiss the underlying case without prejudice, arguing that it is in the best interest of justice to do so, as well as invoking Section 473(d) of the CCP. However, Plaintiff offers no explanation as to why dismissing the case would be in the best interests of justice, or how the judgment was otherwise void under Section 473(d).

Disposition

Plaintiff shall make a showing on date of motion that dismissal in this case is warranted. This court will allow the presentation of oral evidence on date of motion.

3. 9:00 AM CASE NUMBER: L25-11200
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. DERRICK SHELTON
***HEARING ON MOTION IN RE: TO SET ASIDE ENTRY OF DEFAULT**
FILED BY: SHELTON, DERRICK
***TENTATIVE RULING**

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background

Defendant filed a Motion to set aside Entry of Default - which was filed on 12/26/25 - under Section 473(b) of the Code of Civil Procedure. Plaintiff filed a response.

Analysis

Defendant cites mistake, inadvertence, or excusable neglect, as a reason – or reasons – for his failure to respond to Plaintiff’s Complaint, yet offers no description for the mistake, inadvertence, or excusable neglect.

It is Defendant’s burden to show the court that at least one of these occurred, yet he has failed to do so.

Disposition

The Motion is denied. Plaintiff shall prepare the Order.

4. 9:00 AM CASE NUMBER: MSL06-05109
CASE NAME: CAVALRY PORTFOLIO SERVICES, LLC VS. MARIA URIBE
***HEARING ON MOTION IN RE: TO VACATE DEFAULT JUDGMENT**
FILED BY: CAVALRY PORTFOLIO SERVICES, LLC
TENTATIVE RULING:

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background

Plaintiff filed a Motion to Set Aside Default Judgment, and dismiss the action, under Section 473 of the CCP, on the basis that the underlying account between Plaintiff and Defendant was the consequence of fraudulent activity against the Defendant.

Disposition

The Motion to Set Aside is granted. The case is dismissed without prejudice. Plaintiff shall prepare the Order.

5. 9:00 AM CASE NUMBER: MSL07-00470

CASE NAME: LHR, INC. VS. WIESLAW ZIEBA

*HEARING ON MOTION IN RE: TO AMEND JUDGMENT AND RENEWAL OF JUDGMENT TO CHANGE PLAINTIFF'S NAME

FILED BY: PHARUS FUNDING LLC, AS SUCCESSOR IN INTEREST TO LHR, INC.

TENTATIVE RULING:

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background

Plaintiff filed this Motion to amend the name of the original Plaintiff on the Judgment, LHR, Inc., to Daz Funding, as a successor-in-interest, ultimately, to LHR.

The Motion is unopposed.

Proof of service by mail was filed, indicating mail service on Defendant at an address where he had been personally served in the matter on 9/27/12. No subsequent changes of address have been filed with the court by Defendant.

Analysis

Case law suggests that a trial court has discretion to amend the name of a Defendant, under Section 187 of the Code of Civil Procedure, when the doing so would simply identify the Defendant by the name of its alter ego. See *Greenspan v. LADT, LLC* (2010) 191 Cal.App.4, 486, 508; and *Miski v. D 'Arco* (2011) 197 Cal.App.4th 1065, 1074. The reasoning in these cases is that there was no change in the real defendant in the matter, and that the defendant – even under its alter ego - “[I]n fact had control of the previous litigation and thus were virtually represented in the lawsuit.” See *Greenspan v. LADT, LLC, supra*, 191 Cal.App.4 at 508. Moreover, in these matters, “The greatest liberality is to be encouraged in the allowance of such amendments in order to see that justice is done.” *Id.*

To begin with, in the instant matter, this court finds proper service of Defendant.

Next, though it is Plaintiff that seeks a change of its own name on the Judgment, as a successor in interest, rather than that of Defendant, the court sees no difference. There is no prejudice to the Defendant. Defendant’s ability to defend themselves is in no way affected.

Disposition

The Motion granted. Plaintiff shall prepare the Order and submit an amended judgment within 10 days.

6. 9:00 AM CASE NUMBER: MSL12-04359

CASE NAME: CAVALRY VS CARDENAS

*HEARING ON MOTION IN RE: MOTION TO VACATE DEFAULT JUDGMENT FILED BY PLN ON 11/20/25

FILED BY: CAVALRY SPV I, LLC

TENTATIVE RULING:

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background

Plaintiff filed a Motion to Set Aside Default Judgment, and dismiss the action with prejudice, under Section 473 of the CCP, on the basis that the parties have agreed to a mutual release.

Disposition

Motion to Set Aside is granted. The case is dismissed with prejudice. Plaintiff shall prepare the Order.

7. 9:00 AM CASE NUMBER: N26-0060

CASE NAME: KUANGSUN TUNG VS. CITY OF CONCORD

HEARING IN RE: PETITION FOR ORDER RELIEVING FROM GOV CLAIM

FILED BY: TUNG, KUANGSUN

***TENTATIVE RULING**

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background

Plaintiff filed a petition for this court to grant him relief from the requirements of the Government code, under Section 946.6 of the Government Code, allowing him to file a claim against Defendant, City of Concord ("Defendant" or "City").

The Government Code requires that a Plaintiff meet certain pre-conditions before filing a civil claim against a city, such as submitting an application to the local government entity for a cause of action. Plaintiff's initial application to the City was denied because it was untimely. Plaintiff subsequently filed a late-claim application to the City, as required by the Government Code, which was also denied.

Defendant, in their response to this Petition, contends that Plaintiff cannot seek relief from the requirements because his application for a late claim occurred more than one year from the accrual of the cause of action.

Analysis

Government Code section 946.6 permits a petition to the superior court for relief from the requirements of Section 945.5 only if the petitioner applied to present a late claim to the appropriate public entity board no more than 12 months from date of the accrual of action. (See Gov. Code sections 946.6(c) and 911.4(b).)

"When the underlying application to file a late claim is filed more than one year after accrual of the cause of action, the court is without jurisdiction to grant relief..." (*Greyhound Lines, Inc. v. County of Santa Clara* (1986) 187 Cal.App.3d 480, 488.)

A cause of action thus accrues "when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her." (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110.) "[T]he limitations period begins once the plaintiff has notice or information of circumstances to put a reasonable person on inquiry." (*Id.* at 1110-1111.)

"Under [the delayed discovery] doctrine, a cause of action does not accrue until the plaintiff discovers, or has reason to discover, the cause of action. A plaintiff has reason to discover a cause of action when he or she has reason to at least suspect a factual basis for its elements. Suspicion of one or more of the elements, coupled with knowledge of any remaining elements, will generally trigger the applicable limitations period. This refers to the generic elements of wrongdoing, causation, and harm and does not require a hyper technical approach. Instead, we look to whether the plaintiffs have reason to at least suspect that a type of wrongdoing has injured them." (*S.M. v. Los Angeles Unified School Dist.* (2010) 184 Cal.App.4th 712, 717.)

In the instant matter, Plaintiff began to experience plumbing problems within the same month – December, 2023 - that the City's work on the sidewalk occurred and was completed. He concedes

that, during the time frame of December, 2023, to February, 2025, he hired plumbers “multiple times.”

It wasn’t until 10/16/25 that Petitioner submitted a late claim application, under Section 911.4 of The Government Code, to the City of Concord.

The court infers from this time frame that plumbers were called with an even level of frequency throughout this time period, rather than only from the time period beginning January, 2025. To conclude otherwise renders superfluous the time frame provided by Plaintiff.

While it is true that Plaintiff did not get video evidence from CCTV until March of 2025, this evidence wasn’t necessary for him to have reason to suspect that the City had committed some sort of wrongdoing. Any reasonable person would suspect that the City’s sidewalk construction had something to do with the plumbing problems that occurred shortly thereafter. Put a different way: the temporal proximity of the construction and the plumbing problems would have put a reasonable person on notice of a potential issue lurking under the surface that was linked to the City’s work. Plaintiff was not entitled to remain willfully blind.

Thus, the court finds that the cause of action accrued in December of 2023.

This court finds that Plaintiff’s application for a late claim to the City of Concord, under Section 911.4 of the Government Code, was untimely.

Disposition

Plaintiff’s Petition is Denied. Defendant shall prepare the Order.